



Todd DeMelle <tdemelle@gmail.com>

RE: Westwood Town Site Email - question about your letter to the DEP re: Mill Pond

Todd DeMelle <tdemelle@gmail.com>

Mon, Sep 15, 2025 at 11:58 AM

To: Patrick Ahearn <pahearn@westwoodma.gov>

Cc: Karon Catrone <kcatrone@westwoodma.gov>

Thank you Mr Ahearn,
I appreciate the follow up.

I reviewed the documents in the case file at the DEP office in Woburn a couple weeks ago. I couldn't find a record of your letter or a response there either.

I just sent an email to Tyler Ferrick at the DEP asking if perhaps he may have access to anything that didn't make it into the public record. I'll let you know if there's a response.

Sent from my iPhone

On Sep 15, 2025, at 11:03 AM, Patrick Ahearn <pahearn@westwoodma.gov> wrote:

I have not been able to locate a response to the letter you asked about. I have one additional place to look. If we find something we will let you know. The one thing you may want to do is make an appointment with Karon Catrone and review the file with her.

Patrick J. Ahearn, Esq.

Town Counsel

From: Todd DeMelle <tdemelle@gmail.com>**Sent:** Friday, September 12, 2025 1:47 PM**To:** Patrick Ahearn <pahearn@westwoodma.gov>**Subject:** Re: Westwood Town Site Email - question about your letter to the DEP re: Mill Pond

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Dear Mr Ahearn,

Just a follow up to confirm whether you may have recalled any response from the DEP to your letter. The points you raised, which I believe summarized points made by Brian Donahoe, the consultant the town hired to review the delineations in 2021, seem like credible concerns.

I've learned that the delineations in the SOC plans under review at the time actually came from a highly contested FORAD issued by the DEP in 2016 when the pond was at the driest it's been in the twenty one years I've lived next to it. The pond recovered the following year and in 2021, the year when the

observations in your letter were made challenging the 2016 delineations, conditions and water levels had changed back to normal.

The FORAD, which the applicant used to deflect delineation concerns during that SOC review, expired in 2022. Unfortunately, the SOC locked in those same delineations for its duration. Normally, that would have been three more years from 2022 to 2025, but the Leads Act extends that two more years to 2027.

The net effect is, despite the pond returning to its normal state the year following the 2016 FORAD, despite being contested in 2022, and despite beaver activity over the past few years raising the water to the highest levels we've seen, delineations made at an extraordinarily unusual moment will remain inaccurate and beyond appeal for eleven years.

Next week is the conservation commission hearing to review the NOI for the dam work that the 2022 SOC settlement agreement depends on. I believe this is the last opportunity to advocate for the actual state of the pond and the surrounding wetlands to be recognized. My hope is that your letter and Mr Donahoe's reports from that time may stand as credible evidence that the delineations from 2016, that are the basis for the dam repair NOI plans, are inaccurate and should be re-established.

Because of the complexity of the history of this case, despite being publically available, it's been challenging piecing the course of events together from the various files available at the DEP, the Conservation Commission and the Superior Court. Any light you may be able to shed on some of the missing pieces would be very much appreciated.

Thank you.

Sincerely,

Todd DeMelle

1355 High St, Westwood, MA 02090

617 462 9195

On Fri, Sep 5, 2025 at 10:41 AM Todd DeMelle <tdemelle@gmail.com> wrote:

Thank you for the quick reply. I've attached the referenced letter. I got it from the Conservation Commission file on DEP #338-0706.

On Fri, Sep 5, 2025 at 7:16 AM Patrick Ahearn <pahearn@westwoodma.gov> wrote:

Mr. DeMelle, Can you forward the specific document you are referencing so I am able to ascertain time frames and context? Please advise.

Patrick J. Ahearn, Esq.

Town Counsel

From: Town of Westwood Website Information <townhallwestwoodma@enotify.visioninternet.com>
Sent: Thursday, September 4, 2025 11:09 PM
To: Patrick Ahearn <pahearn@westwoodma.gov>
Subject: Westwood Town Site Email - question about your letter to the DEP re: Mill Pond

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Message submitted from the <Town of Westwood, MA> website.

Site Visitor Name: Todd DeMelle
Site Visitor Email: tdemelle@gmail.com

Dear Mr Ahearn, My name is Todd DeMelle and I live at 1355 High St in Westwood overlooking Bakers Pond. In preparation for the upcoming conservation commission hearing next week on the 10th where the WCC will be reviewing the latest NOI from Delapa/Goddard to repair the dam on the pond, I have been going over the case history. I came across your letter to the DEP questioning details of the SOC appeal, but was unable to find a response. It surprised me that the DEP issued the SOC a few weeks later without a formal response to the issues you raised. If you're able to share what happened, I'd appreciate being able to bring that knowledge to the meeting. Thank you. Todd DeMelle

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